

STATE OF NEW YORK

7484--A

2025-2026 Regular Sessions

IN SENATE

April 17, 2025

Introduced by Sen. MAYER -- read twice and ordered printed, and when printed to be committed to the Committee on Disabilities -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the mental hygiene law, in relation to establishing a statewide residential families committee

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 13.05 of the mental hygiene law is amended by
2 adding a new subdivision (h) to read as follows:

3 (h) 1. In addition to any other committees established by the develop-
4 mental disabilities advisory council as deemed necessary by the chair
5 under paragraph one of subdivision (c) of this section, there shall be
6 established a statewide residential families committee whose members
7 shall be persons with developmental disabilities residing in community
8 residences, intermediate care facilities, or other residential facili-
9 ties for the care and treatment of persons with developmental disabili-
10 ties or family members or guardians of persons with developmental disa-
11 bilities residing in such residences or facilities for the care and
12 treatment of persons with developmental disabilities.

13 2. The commissioner shall provide for an appropriate and timely appli-
14 cation process to facilitate selection of members. No member of the
15 residential families committee shall be an owner, operator, person with
16 ownership interest in or board member of an entity operating a community
17 residence, intermediate care facility, or other residential facility for
18 the care and treatment of persons with developmental disabilities or be
19 employed by an entity operating a community residence, intermediate care
20 facility, or other residential facility for the care and treatment of
21 persons with developmental disabilities.

22 3. The statewide residential families committee shall meet quarterly.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 4. The duties of the statewide residential families committee shall
2 include, but not be limited to:

3 (i) Informing and advising the commissioner as to matters of impor-
4 tance for persons with developmental disabilities residing in community
5 residences, intermediate care facilities, or other residential facili-
6 ties for the care and treatment of persons with developmental disabili-
7 ties and their families and guardians;

8 (ii) Providing recommendations for statewide and regional priorities
9 and goals for individuals residing in community residences, intermediate
10 care facilities, or other residential facilities for the care and treat-
11 ment of persons with developmental disabilities and families and guardi-
12 ans of individuals residing in such residences or facilities;

13 (iii) Advising the commissioner on such other matters related to
14 community residences, intermediate care facilities, or other residential
15 facilities for the care and treatment of persons with developmental
16 disabilities as the statewide residential families committee deems rele-
17 vant; and

18 (iv) Holding regional public meetings to solicit and receive input
19 from residents of community residences, intermediate care facilities, or
20 other residential facilities for the care and treatment of persons with
21 developmental disabilities and from family members and guardians of
22 residents of such residences or facilities regarding their operation
23 including, but not limited to, care provided.

24 § 2. This act shall take effect on the sixtieth day after it shall
25 have become a law.